

# **Open Uniform Evidence Law**

**An Open Access Casebook for Australian Law Students**

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# Introduction

Welcome to *Open Uniform Evidence Law*, a free, open access casebook for students and teachers of evidence law in Australia's uniform evidence law jurisdictions.

## About this casebook

[Replace this section with your introduction: the purpose of the book, its intended audience, how it relates to the uniform Evidence Acts, and how students should use it alongside lectures, tutorials, and assessment.]

## How to use this book

This book is available in three formats:

- **Web:** the version you are reading now, fully searchable, with hyperlinks to cases on AustLII and to legislation.
- **PDF:** downloadable and printable, including for use in open book, invigilated examinations. Use the download button in the sidebar.
- **Source:** the complete source files are available on GitHub, where errors can be reported and contributions proposed.

## A note on extracts

Case extracts appear in green panels:

**Smith v The Queen** (2001) 206 CLR 650 [Extract text goes here. Replace this with the relevant passage.]

Statutory extracts appear in bordered panels:

**Evidence Act 1995 (Cth) s 55 — Relevant evidence** [Section text goes here.]

Discussion questions appear in gold panels:

### Questions

1. [First question here.]
2. [Second question here.]

## **Acknowledgements**

[Acknowledgements, funding, and contributor credits go here.]

## **Licence**

This book is licensed under a Creative Commons Attribution 4.0 International licence. You are free to share and adapt it, provided you give appropriate credit.



# 1 Giving and Presenting Evidence

## **i** Note

This chapter is under development. Content will be added as the project progresses.

## 1.1 Overview

[A short orientation for students: what this topic is, why it matters, and how it fits within the uniform Evidence Acts.]

## 1.2 Key provisions

**Evidence Act 1995 (Cth) s XX — Section heading** [Section text here.]

## 1.3 Key cases

**Case Name** (Year) Citation [Extract here.]

[Commentary connecting the extract to the statutory framework.]

## 1.4 Discussion questions

### Questions

1. [First question.]
2. [Second question.]

## 1.5 Further reading

[Optional pointers to open access commentary, law reform reports, and scholarship.]



## 2 Relevance

### Note

This chapter is under development. Content will be added as the project progresses.

### 2.1 Overview

[A short orientation for students: what this topic is, why it matters, and how it fits within the uniform Evidence Acts.]

### 2.2 Key provisions

**Evidence Act 1995 (Cth) s XX — Section heading** [Section text here.]

### 2.3 Key cases

**Case Name** (Year) Citation [Extract here.]

[Commentary connecting the extract to the statutory framework.]

### 2.4 Discussion questions

#### Questions

1. [First question.]
2. [Second question.]

### 2.5 Further reading

[Optional pointers to open access commentary, law reform reports, and scholarship.]



## 3 Hearsay

### **i** Note

This chapter is under development. Content will be added as the project progresses.

### 3.1 Overview

[A short orientation for students: what this topic is, why it matters, and how it fits within the uniform Evidence Acts.]

### 3.2 Key provisions

**Evidence Act 1995 (Cth) s XX — Section heading** [Section text here.]

### 3.3 Key cases

**Case Name** (Year) Citation [Extract here.]

[Commentary connecting the extract to the statutory framework.]

### 3.4 Discussion questions

#### Questions

1. [First question.]
2. [Second question.]

### 3.5 Further reading

[Optional pointers to open access commentary, law reform reports, and scholarship.]



## 4 Hearsay Exceptions

### **i** Note

This chapter is under development. Content will be added as the project progresses.

### 4.1 Overview

[A short orientation for students: what this topic is, why it matters, and how it fits within the uniform Evidence Acts.]

### 4.2 Key provisions

**Evidence Act 1995 (Cth) s XX — Section heading** [Section text here.]

### 4.3 Key cases

**Case Name** (Year) Citation [Extract here.]

[Commentary connecting the extract to the statutory framework.]

### 4.4 Discussion questions

#### Questions

1. [First question.]
2. [Second question.]

### 4.5 Further reading

[Optional pointers to open access commentary, law reform reports, and scholarship.]





# 5 Opinion Evidence

## **i** Note

This chapter is under development. Content will be added as the project progresses.

## 5.1 Overview

[A short orientation for students: what this topic is, why it matters, and how it fits within the uniform Evidence Acts.]

## 5.2 Key provisions

**Evidence Act 1995 (Cth) s XX — Section heading** [Section text here.]

## 5.3 Key cases

**Case Name** (Year) Citation [Extract here.]

[Commentary connecting the extract to the statutory framework.]

## 5.4 Discussion questions

### Questions

1. [First question.]
2. [Second question.]

## 5.5 Further reading

[Optional pointers to open access commentary, law reform reports, and scholarship.]



## 6 Admissions

### Note

This chapter is under development. Content will be added as the project progresses.

### 6.1 Overview

[A short orientation for students: what this topic is, why it matters, and how it fits within the uniform Evidence Acts.]

### 6.2 Key provisions

**Evidence Act 1995 (Cth) s XX — Section heading** [Section text here.]

### 6.3 Key cases

**Case Name** (Year) Citation [Extract here.]

[Commentary connecting the extract to the statutory framework.]

### 6.4 Discussion questions

#### Questions

1. [First question.]
2. [Second question.]

### 6.5 Further reading

[Optional pointers to open access commentary, law reform reports, and scholarship.]



# 7 Tendency and Coincidence Evidence

## **i** Note

This chapter is under development. Content will be added as the project progresses.

## 7.1 Overview

[A short orientation for students: what this topic is, why it matters, and how it fits within the uniform Evidence Acts.]

## 7.2 Key provisions

**Evidence Act 1995 (Cth) s XX — Section heading** [Section text here.]

## 7.3 Key cases

**Case Name** (Year) Citation [Extract here.]

[Commentary connecting the extract to the statutory framework.]

## 7.4 Discussion questions

### Questions

1. [First question.]
2. [Second question.]

## 7.5 Further reading

[Optional pointers to open access commentary, law reform reports, and scholarship.]



# 8 Credibility Evidence

## **i** Note

This chapter is under development. Content will be added as the project progresses.

## 8.1 Overview

[A short orientation for students: what this topic is, why it matters, and how it fits within the uniform Evidence Acts.]

## 8.2 Key provisions

**Evidence Act 1995 (Cth) s XX — Section heading** [Section text here.]

## 8.3 Key cases

**Case Name** (Year) Citation [Extract here.]

[Commentary connecting the extract to the statutory framework.]

## 8.4 Discussion questions

### Questions

1. [First question.]
2. [Second question.]

## 8.5 Further reading

[Optional pointers to open access commentary, law reform reports, and scholarship.]





# 9 Character Evidence

## Note

This chapter is under development. Content will be added as the project progresses.

## 9.1 Overview

[A short orientation for students: what this topic is, why it matters, and how it fits within the uniform Evidence Acts.]

## 9.2 Key provisions

**Evidence Act 1995 (Cth) s XX — Section heading** [Section text here.]

## 9.3 Key cases

**Case Name** (Year) Citation [Extract here.]

[Commentary connecting the extract to the statutory framework.]

## 9.4 Discussion questions

### Questions

1. [First question.]
2. [Second question.]

## 9.5 Further reading

[Optional pointers to open access commentary, law reform reports, and scholarship.]



# 10 Identification Evidence

## Note

This chapter is under development. Content will be added as the project progresses.

## 10.1 Overview

[A short orientation for students: what this topic is, why it matters, and how it fits within the uniform Evidence Acts.]

## 10.2 Key provisions

**Evidence Act 1995 (Cth) s XX — Section heading** [Section text here.]

## 10.3 Key cases

**Case Name** (Year) Citation [Extract here.]

[Commentary connecting the extract to the statutory framework.]

## 10.4 Discussion questions

### Questions

1. [First question.]
2. [Second question.]

## 10.5 Further reading

[Optional pointers to open access commentary, law reform reports, and scholarship.]



# 11 Discretionary and Mandatory Exclusions

## **i** Note

This chapter is under development. Content will be added as the project progresses.

## 11.1 Overview

[A short orientation for students: what this topic is, why it matters, and how it fits within the uniform Evidence Acts.]

## 11.2 Key provisions

**Evidence Act 1995 (Cth) s XX — Section heading** [Section text here.]

## 11.3 Key cases

**Case Name** (Year) Citation [Extract here.]

[Commentary connecting the extract to the statutory framework.]

## 11.4 Discussion questions

### Questions

1. [First question.]
2. [Second question.]

## 11.5 Further reading

[Optional pointers to open access commentary, law reform reports, and scholarship.]



# 12 Proof

## Note

This chapter is under development. Content will be added as the project progresses.

## 12.1 Overview

[A short orientation for students: what this topic is, why it matters, and how it fits within the uniform Evidence Acts.]

## 12.2 Key provisions

**Evidence Act 1995 (Cth) s XX — Section heading** [Section text here.]

## 12.3 Key cases

**Case Name** (Year) Citation [Extract here.]

[Commentary connecting the extract to the statutory framework.]

## 12.4 Discussion questions

### Questions

1. [First question.]
2. [Second question.]

## 12.5 Further reading

[Optional pointers to open access commentary, law reform reports, and scholarship.]





# Recommended Resources

## Note

This chapter is under development. Content will be added as the project progresses.

## Legislation

- Evidence Act 1995 (Cth)
- Evidence Act 1995 (NSW)
- Evidence Act 2008 (Vic)
- [Add other uniform jurisdictions: ACT, Tas, NT.]

## Case law databases

- AustLII
- Jade

## Law reform reports

- [ALRC Report 102, *Uniform Evidence Law* (2005) and related reports.]

## Open access scholarship

- [Curated open access articles and commentary go here.]

## Other resources

- [Podcasts, videos, judicial bench books, and anything else useful to students.]

